

Plaintiff moves for attorney's fees and costs pursuant to Civil Code section 1794(d) following settlement of this action under the Song-Beverly Consumer Warranty Act. Plaintiff accepted Defendant's CCP 998 offer approximately 14 months after the commencement of this litigation, which included payment of Plaintiff's reasonable attorney's fees and costs. Defendant does not dispute that Plaintiff is the prevailing party for purposes of this motion but contends the fees sought are excessive.

Civil Code section 1794(d) mandates an award of reasonable attorney's fees to a prevailing buyer. In determining a reasonable fee, courts apply the lodestar method, calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

Plaintiff seeks \$25,579.50 incurred in attorneys fees and \$955.39 in costs, for a total of \$26,534.89.

Plaintiff's proposed fee recovery is based on 41.1 hours spent by counsel litigating this case. Plaintiff anticipated an additional 4.5 hours in attorney fees with reviewing D's opposition, preparing a reply brief and attending a hearing on their motion. Defendant argues the rates and hours are inflated as the case involved no novel or unique issues and the fees are exorbitant.

Having reviewed the moving papers, opposition, reply, and billing records, the Court finds that the number of hours expended is generally reasonable given the procedural posture of the case. The records are sufficiently detailed, and the Court does not find pervasive duplication or improper billing practices warranting a broad reduction in hours. While defense contends that the claimed hours is excessive for a routine Song-Beverly case, the Court accepts Plaintiff counsel's representation that further reductions in hours have already been made. "The verified time statements of attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v. Board of Trustees pf Ca; St. Univ.* (2005) 132 Cal. App.4th 359, 396; *Martino v. Denevi* (1986) 182 Ca. App.3d 553, 559.)

With respect to hourly rates, the Court finds \$500 per hour for partner-level work, \$350 per hour for associate-level work, and \$150 per hour for law clerk work to more closely reflect the prevailing market rates for comparable services in this community. The Court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009)

Accordingly, the motion for attorney's fees and costs is GRANTED IN PART AND DENIED IN PART, as follows:

1. The Court sets reasonable hourly rates at \$500 for partner-level work, \$350 for associate-level work, and \$150 for law clerk work.
2. Plaintiff's request for costs in the amount of \$955.39 is granted.

3. If no party contests this tentative ruling, the compensable time shall be reduced by one hour.
4. Plaintiff shall prepare and submit a proposed order containing a revised lodestar breakdown consistent with this ruling, identifying each timekeeper, the approved hourly rate, the compensable hours allowed, and the resulting final recalculated attorney's fee amount.

Calendar Line 4

Case Name: Mathew Reinhardt v. General Motors LLC
Case No 25CV465577

The Court has reviewed the moving papers, opposition, reply, declarations, and billing records submitted. The Court finds that this action involved a routine Song-Beverly repurchase claim that was resolved relatively early in the litigation after approximately 6 months. While the Court does not undermine the effort put forth by Plaintiff, the Court agrees with Defendant that the case did not present novel or particularly complex issues that would justify the application of a multiplier. Plaintiff has not demonstrated circumstances warranting enhancement of the lodestar, and the request for a 1.5 multiplier is therefore DENIED.

With respect to hourly rates, the Court finds that the requested rate of \$500 per hour for the number of years the attorneys have been in practice is consistent with prevailing market rate in Santa Clara County. The Court finds \$150 per hour to be a reasonable rate for paralegal work. These rates reflect the prevailing market rates for comparable services in this community.

The Court finds that the number of hours claimed is excessive for the anticipated additional hours requested for preparation of the reply and attendance at the hearing on this motion. The hours shall be reduced from 10 hours to 3.5 - 4.5 hours (see below.)

The Court requires documentation or explanation of costs for “other” in the amount of \$200 of the requested \$823.44 in costs.

Accordingly, the motion for attorney’s fees and costs is GRANTED IN PART AND DENIED IN PART, as follows:

1. The Court grants the reasonable hourly rates at \$500 per hour for partner level attorney work and \$150 an hour for paralegal work.
2. Plaintiff’s request for a 1.5 multiplier is denied.
3. The requested fees of 10 hours anticipated to prepare for, present, and argue this motion shall be reduced to 4.5 hours. If no one contests this tentative ruling, it shall be further reduced by 1 hour.
4. Plaintiff shall submit documentation supporting the claimed costs with the proposed order.

Plaintiff shall prepare and submit a proposed order consistent with this ruling, including the recalculated fee award and supporting documentation for costs, accompanied by Form EFS-020 within 10 days of this hearing.